

EXECUTIVE SUMMARY

According to its constitution, Egypt is a republic governed by an elected president and unicameral legislature. Domestic and international observers concluded the 2014 presidential election was administered professionally and in line with the country's laws, while also expressing serious concerns that government limitations on association, assembly, and expression constrained broad political participation. Domestic and international observers also concluded that government authorities professionally administered parliamentary elections in 2015 in accordance with the country's laws, while also expressing concern about restrictions on freedom of peaceful assembly, association, and expression and their negative effect on the political climate surrounding the elections.

Civilian authorities maintained effective control over the security forces.

A three-month state of emergency (SOE), subsequently renewed for an additional three months, was imposed following the Palm Sunday terrorist attacks on Coptic churches in April. Two days after the expiration of the second SOE in October, a three-month SOE was imposed. By law SOEs may only be renewed once.

The most significant human rights issues included arbitrary or unlawful killings by the government or its agents; major terrorist attacks; disappearances; torture; harsh or potentially life-threatening prison conditions; arbitrary arrest and detention; including the use of military courts to try civilians; political prisoners and detainees; unlawful interference in privacy; limits on freedom of expression, including criminal "defamation of religion" laws; restrictions on the press, internet,

and academic freedom; and restrictions on freedoms of assembly and association, including government control over registration and financing of NGOs. LGBTI persons faced arrests, imprisonment, and degrading treatment. The government did not effectively respond to violence against women, and there were reports of child labor.

The government inconsistently punished or prosecuted officials who committed abuses, whether in the security services or elsewhere in government. In most cases the government did not comprehensively investigate human rights abuses, including most incidents of violence by security forces, contributing to an environment of impunity.

Attacks by terrorist organizations caused arbitrary and unlawful deprivation of life. Terrorist groups conducted deadly attacks on government, civilian, and security targets throughout the country, including places of worship and public transportation. Authorities investigated terrorist attacks.

Section 1.

Respect for the Integrity of the Person, Including Freedom from:

A. ARBITRARY DEPRIVATION OF LIFE AND OTHER UNLAWFUL OR POLITICALLY MOTIVATED KILLINGS

There were numerous reports the government or its agents committed arbitrary or unlawful killings, including incidents that occurred while making arrests or holding persons in custody, during disputes with civilians, or while dispersing demonstrations. There were also reports of civilians killed during military operations in Sinai. Impunity was a problem.

There were instances of persons tortured to death and other allegations of killings in prisons and detention centers. The government charged, prosecuted, and convicted perpetrators in some cases.

On February 13, Mahmoud Sayed Hussein died due to what government investigators described as beatings and torture following a 15-day detention on charges of murder and theft. In March the Giza Public Prosecutor's Office ordered the detention of three police officers involved. The investigation was still pending at year's end.

As of year's end, an investigative team led by the Prosecutor General's Office had not released its conclusions of its investigation into the killing of Italian graduate student Giulio Regeni in 2016. In February 2016 authorities found Regeni's body with what forensics officials said were signs of torture, including cigarette burns, broken bones, and head injuries. Local and international human rights groups stated such signs of torture were consistent with forms of abuse committed by security services. Some human rights groups further alleged torture by security services was responsible for Regeni's death. An international news agency reported security services detained Regeni prior to his death, citing intelligence and police sources. The Interior Ministry denied such claims and any connection with Regeni's death.

There were reports of suspects killed in unclear circumstances during or after arrest. On July 19, authorities arrested Gamal Aweida, a 43-year-old Coptic Christian man, on charges of procuring false drivers' licenses. According to an Amnesty International (AI), 15 hours after his arrest, authorities informed his family he was dead by suicide. A subsequent Forensic Medical Authority report listed his cause of death as "suspect criminal action and a severe drop in blood circulation." Family members stated Aweida's body bore marks of torture. The

prosecutor's office summoned police officers for questioning, but there were no reports of further action.

There were reports of police killing unarmed civilians during personal or business disputes, which local academics and human rights groups asserted were part of a culture of excessive violence within the security services. On January 18, the Prosecutor's Office charged two police officers with beating and torturing to death a laborer in July 2016 after the laborer attempted to bribe a friend of the officers.

There were reports of suspected terrorists and other suspected criminals killed during security raids conducted by police. The Interior Ministry claimed police officers fired at suspects only when suspects fired first. In July press reported that the Ministry of Interior killed 54 persons in 14 operations following a May 26 terrorist attack on a bus carrying Coptic Christians (see below). According to state-affiliated press reporting, the ministry alleged 29 of those killed were Arms of Egypt Movement (HASM) and Islamic State Sinai Province (IS-Sinai) terrorists and had not yet identified the remaining 25. Rights groups claimed these shootings might have amounted to extrajudicial killings. In some cases, human rights organizations and media reported there was evidence that police detained suspects before killing them. On January 13, the Interior Ministry reported it killed 10 alleged members of the armed group IS-Sinai in al-Arish during a house raid. The Interior Ministry named six of the 10. According to AI and Human Rights Watch (HRW), all six were in police custody at the time of the reported house raid, and police had held them for three months.

The government, at times, used excessive force to disperse both peaceful and nonpeaceful demonstrations. On July 16, security forces killed one protester on Warraq Island, near Cairo, reportedly due to suffocation from tear gas. The Ministry of Interior and press reporting claimed protesters attacked security forces

with rocks and birdshot. A local resident claimed police fired birdshot as well as tear gas at protesters.

On February 14, the Court of Cassation ordered a retrial in the case of the Central Security Forces officer previously convicted of killing secular activist Shaimaa el-Sabbagh at a peaceful demonstration in 2015. A Cairo criminal court previously convicted the officer of manslaughter and sentenced him to 15 years' imprisonment (see section 1.d.). On June 19, a Cairo criminal court reduced the sentence to 10 years' imprisonment prison.

A second appeal was pending at year's end in the case of four police officers charged in the 2013 deaths of 37 Muslim Brotherhood (MB) detainees while transferring them to Abu Zaabal Prison near Cairo. In 2014 an appeals court overturned their original conviction. In 2015 the officers were convicted again, but the court reduced one officer's sentence from 10 to five years, while maintaining the one-year suspended prison sentences for the three other officers.

At year's end the government had not held accountable any individual or governmental body for state violence after 2013, including the deaths of hundreds of civilians during the 2013 dispersals of the sit-ins at Rabaa al-Adawiya Square in Cairo and Nahda Square in Giza.

The independent online newspaper *Mada Masr* reported that, on July 5, an airstrike killed an engineer and two workers near the Bahariya Oasis in the Western Desert. No party took responsibility for the attack.

Terrorist groups, including IS-Sinai (formerly known as Ansar Bayt al-Maqdis) and Ajnad Misr, among others, conducted deadly attacks on government, civilian, and security targets throughout the country, including schools, places of worship, banks, and public transportation. On April 9, twin terrorist attacks on the St.

George Church in Tanta and the St. Mark Church in Alexandria during Palm Sunday prayers killed 53 civilians and injured dozens more. ISIS claimed responsibility for the attack. On April 18, police arrested Ali Mahmoud Mohamed Hassan on suspicion of involvement with the bombings. On June 22, according to a Ministry of the Interior statement, police killed seven persons with alleged links to the attacks in a security operation.

On May 26, a terrorist attack on a bus carrying Coptic Christians killed 29 civilians. According to government statements, the perpetrators were HASM and IS-Sinai terrorists.

There were no published official data on the number of victims of terrorist violence during the year. According to local media reports, terrorists killed hundreds of civilians throughout the country. In Sinai alone militant violence had killed at least 405 civilians and 137 security force members (police and military), according to publicly available information. During the same period in Sinai, the government killed 753 terrorists, according to official public statements.

B. DISAPPEARANCE

Several international and local human rights groups reported continuing large numbers of enforced disappearances, alleging authorities increasingly relied on this tactic to intimidate critics. According to an August AI statement, security agents caused the disappearance of at least 1,700 persons since 2015. According to an August report issued by the Cairo-based nongovernmental organization (NGO) Egyptian Coordination for Rights and Freedoms (ECRF), authorities forcibly disappeared 254 individuals during the first six months of the year. In the cases ECRF presented, authorities arrested those forcibly disappeared in a manner that did not comply with due process (see section 1.d.). Authorities also detained individuals after forcing their way into homes without producing arrest or search

warrants. According to ECRF, many of these individuals were detained in police stations or Central Security Forces' camps but were not included in official registers. Authorities held detainees incommunicado and denied their requests to contact family members and lawyers. The length of disappearances documented by AI ranged from a few days to seven months. Local rights groups provided various estimates of forced disappearances, with one reporting 630 cases between January and May 15. According to government statements, in 2016 the National Council for Human Rights raised 448 cases of enforced disappearances with the Interior Ministry, which responded with information on 393.

On June 17, security forces detained human rights lawyer Tarek Hussein at his home and detained him for 42 days. According to his public statements, officers did not present an arrest warrant at the time of his detention, despite his request to see one. According to Hussein, security forces moved him among multiple facilities, his family was often unaware of his whereabouts, and he was initially denied contact with his lawyer. Authorities charged him with belonging to the MB, calling for a protest, and several other minor charges. Several cases against him remained open.

The next hearing in the trial of Aser Mohamed, which began in August 2016, was scheduled for February 10, 2018. In January 2016 authorities detained 14-year-old Aser Mohamed, taking him from his home without producing an arrest warrant, as reported by AI. Mohamed was missing for 34 days before he was located at a Central Security Forces camp on the outskirts of Cairo, as stated by AI. According to AI, authorities reportedly tortured Mohamed to "confess" to participating in a terrorist attack and other crimes during his detention. In February 2016 authorities charged Mohamed and 25 others with belonging to a banned group. According to available information, Mohamed remained at the Central Security Forces camp.

According to a 2016 AI report, authorities held many victims of forced disappearance at the National Security Sector Lazoughly Office. There were also reports that military authorities continued to hold civilians in secret at al-Azouly Prison inside al-Galaa Military Camp in Ismailia. Authorities did not charge the detainees with crimes or refer them to prosecutors or courts. They also prevented detainees' access to their lawyers and families.

According to a July 31 report of the UN Human Rights Council's Working Group on Enforced or Involuntary Disappearances, 258 disappearance cases were under the working group's review. The report noted the working group's "concern" that, despite the government's engagement, 101 cases were transmitted under its urgent action procedure during the reporting period of May 2016 through May 2017. As of December the working group had not received a response to its 2011 request to visit the country (see section 5).

C. TORTURE AND OTHER CRUEL, INHUMAN, OR DEGRADING TREATMENT OR PUNISHMENT

The constitution states that no torture, intimidation, coercion, or physical or moral harm shall be inflicted upon a person whose movements are restricted or whom authorities have detained or arrested. The penal code forbids torture to induce a confession from a detained or arrested suspect but does not account for mental or psychological abuse against persons whom authorities have not formally accused, or for abuse occurring for reasons other than securing a confession. The penal code also forbids all public officials or civil servants from "employing cruelty" or "causing bodily harm" under any circumstances.

Local rights organizations documented hundreds of incidents of torture throughout the year, including deaths that resulted from torture (see section 1.a.). According to domestic and international human rights organizations, police and prison guards

resorted to torture to extract information from detainees, including minors. Reported techniques included beatings with fists, whips, rifle butts, and other objects; prolonged suspension by the limbs from a ceiling or door; electric shocks; sexual assault; and attacks by dogs. A June UN Committee against Torture report concluded that torture was a systematic practice in the country. Government officials denied the use of torture was systemic. A September HRW report catalogued multiple cases in which members of the public prosecution, the authority empowered with investigating abuses, ignored victims' allegations of torture. According to HRW and local NGOs, torture was most common in police stations and other Interior Ministry detention sites. Local NGO al-Nadeem Center for Rehabilitation of Victims of Violence documented an average of 35 to 40 instances of torture per month. Authorities stated they did not sanction these abuses and, in some cases, prosecuted individual police officers for violating the law (see section 1.a.).

On July 6, AI released a report claiming that four individuals, whom authorities stated were killed in shootouts with police, may have earlier been detained in May, tortured, released, and in June extrajudicially executed. AI reported that family members who saw victims' bodies at the morgue told AI three bore signs of torture including bruises and, in one case, burns.

On February 7, the Cairo Criminal Court released assistant detective Karim Magdy, accused in the torture and death of cart driver Magdy Makeen, on bail of 5,000 Egyptian pounds (EGP) (\$283). In November 2016 authorities found Makeen dead with signs of severe torture. A forensic report stated Makeen died as a result of one or more persons standing on his back. Authorities arrested nine persons, including Magdy. No further information was available on the status of the investigation at year's end.

A third retrial continued for two national security officers accused of torturing to death lawyer Karim Hamdy in 2015. The most recent hearing was scheduled for January 2018. In October 2016 the Court of Cassation canceled the five-year prison sentences for the two security officers. Hamdy died in custody after authorities arrested him on charges of taking part in antigovernment protests. According to a forensic report, he sustained fractures to the ribs and bruises and bleeding in the chest and head. The accused officers remained free pending the results of the retrial.

On June 7, the Court of Cassation upheld the death sentences against six men who were forcibly disappeared and tortured to obtain the confessions used to convict them, according to AI. The men were arrested by the National Security Sector in 2014 and disappeared for periods ranging from days to three months during which time authorities tortured them. On June 15, the men's lawyers submitted a final appeal, requesting a retrial based on due process errors in the previous trial. No further information on the state of the appeal was available at year's end.

Prison and Detention Center Conditions

Conditions in the prisons and detention centers were harsh and potentially life threatening due to overcrowding, physical abuse, inadequate medical care, poor infrastructure, and poor ventilation.

Physical Conditions: According to domestic and international nongovernmental NGO observers, prison cells were overcrowded, and prisoners lacked adequate access to medical care, proper sanitation and ventilation, food, and potable water. Tuberculosis was widespread. Provisions for temperature control and lighting generally were inadequate. Reports that guards abused prisoners, including

juveniles, in adult facilities were common. Prison conditions for women were marginally better than those for men. Media reported that some prisoners protested conditions in July by going on hunger strikes, including at Wadi al-Natrun Prison.

According to the law, religious books are required to be available for prisoners, religious counsel (including confession if appropriate) should be provided to prisoners in keeping with the tenets of their religious group, and prisoners should not be compelled to work during religious holidays.

The large number of arrests and the use of pretrial detention during the year exacerbated harsh conditions and overcrowding, contributing to the prevalence of deaths in prisons and detention centers. During the year the National Council for Human Rights (NCHR) reported police detention centers were at 150 percent of maximum capacity and that prisons were at 300 percent of maximum capacity. Health care in prisons was inadequate, leading to a large number of prisoner deaths due to possibly treatable natural causes. Human rights groups and the families of some deceased prisoners claimed that prison authorities denied prisoners access to potentially life-saving medical care and, in some cases, denied requests to transfer the prisoners to the hospital, leading to deaths in prison.

According to an August 14 HRW report, journalist Hisham Gaafar's health, including his eyesight, was deteriorating because prison authorities could not provide him necessary health care. Since 2015 authorities detained Gaafar on charges including membership in the MB and illegally receiving foreign funds for his foundation. According to HRW Gaafar suffered from a number of ailments, which required continuing specialist care.

On November 4, Nubian activist Gamal Sorour (see section 6) died after falling into a diabetic coma while in pretrial detention. According to press reports, Sorour

was one of at least 223 detainees participating in a hunger strike protesting prolonged pretrial detention and maltreatment.

There were reports authorities sometimes held prisoners accused of crimes related to political or security issues separately from common criminals and subjected them to verbal or physical abuse and punitive solitary confinement. On October 12, the Court of Cassation ordered the retrial of imprisoned activist Ahmed Douma. In 2015 authorities convicted Douma of several offenses, including assaulting police and military forces during clashes between protesters and police in 2011. Beginning with his arrest in 2015, Douma was held in solitary confinement for more than 1,200 days.

Authorities did not always separate juveniles from adults and sometimes held pretrial detainees with convicted prisoners. Rights organizations alleged the illegal use of Central Security Forces camps as detention facilities.

The law authorized prison officials to use force against prisoners who resisted orders.

Administration: The penal code provides for reasonable access to prisoners. According to NGO observers and relatives, the government sometimes prevented visitors' access to detainees. Prisoners could request investigation of alleged inhumane conditions. NGO observers claimed, however, that prisoners sometimes were reluctant to do so due to fear of retribution from prison officials. The government investigated some, but not all, of these allegations. As required by law, the public prosecutor inspected prisons and detention centers.

Independent Monitoring: The government did not permit visits by nongovernmental observers but did permit some visits by the National Council for Women and Parliament's Human Rights Committee to prisons and detention centers. The law

formally recognizes the NCHR's role in monitoring prisons, specifying that visits require notifying the prosecutor general in advance. The NCHR did not visit any prisons in 2017. Authorities did not permit other human rights organizations to conduct prison visits.

D. ARBITRARY ARREST OR DETENTION

The constitution prohibits arbitrary arrest and detention and provides for the right of any person to challenge the lawfulness of his/her arrest or detention in court, but reported incidents of arbitrary arrests and detentions remained frequent.

ROLE OF THE POLICE AND SECURITY APPARATUS

Civilian authorities maintained effective control over security forces. The government does not have effective mechanisms to investigate and punish abuse. Official impunity was a problem. Police investigative skills remained poor. Police did not investigate reported police abuses sufficiently, according to local and international human rights groups. The government investigated and prosecuted some, but not all, reports of abuse, and some prosecutions resulted in acquittals due to insufficient or contradictory evidence. The government frequently called for investigations of abuses by security forces, although these investigations rarely resulted in judicial punishment.

The primary security forces of the Interior Ministry are the Public Police and the Central Security Forces. The Public Police are responsible for law enforcement nationwide. The Central Security Forces provide security for infrastructure and key domestic and foreign officials, and are responsible for crowd control. The National Security Sector, which investigates counterterrorism and internal security threats, also reports to the minister of interior. The armed forces report to the minister of

defense and are generally responsible for external defense, but they also have a mandate to “assist” police in protecting “vital public facilities,” including roads, bridges, railroads, power stations, and universities. Military personnel have arrest authority during “periods of significant turmoil.” The Border Guards Department is responsible for border control and includes members from the army and police. Single-mission law enforcement agencies, such as the Tourist and Antiquities Police and the Antinarcotics General Administration, also worked throughout the country.

On June 19, the retrial of a Central Security Forces officer previously convicted of killing secular activist Shaimaa el-Sabbagh at a peaceful demonstration in 2015 concluded when a Cairo Criminal Court sentenced him to 10 years in prison.

On March 2, the Court of Cassation found former president Hosni Mubarak, former minister of interior Habib al-Adly, and six others innocent of issuing an order to kill protesters during the 2011 revolution. The decision marked the end of a retrial that began in late 2015. The court also rejected lawyers’ and victims’ requests to reopen civil suits. There are no further options for repeal or retrial. Thus far no entity or individual has been found responsible for the deaths of protesters during the 2011 revolution.

ARREST PROCEDURES AND TREATMENT OF DETAINEES

For persons other than those apprehended in the process of committing a crime, the government required a warrant issued either under the penal code or the code of military justice, both of which were in effect simultaneously; however, there were numerous reports of arrests without such a warrant.

Ordinary criminal courts and misdemeanor courts hear cases brought by the prosecutor general. Arrests under the penal code occurred openly and with warrants issued by a public prosecutor or judge. There was a functioning bail system, although some defendants claimed judges imposed unreasonably high bail.

Criminal defendants have the right to counsel promptly after arrest, and usually, but not always, authorities allowed access to family members. The court is obliged to provide a lawyer to indigent defendants. Nevertheless, defendants often faced administrative and, in some cases, political obstacles and could not secure regular access to lawyers or family visits. A prosecutor may order four days of preventative detention for individuals suspected of committing misdemeanors and 15 days for individuals suspected of committing felonies. The period of preventative detention is subject to renewal by the prosecutor for up to 60 days, in cases of both misdemeanors and felonies. On the 61st day, the prosecutor must submit a case to a relevant judge who may release the accused person or renew the detention in increments of 15 days (but no longer than 45 days at a time). Detention may extend from the stage of initial investigation through all stages of criminal judicial proceedings. Except in cases involving the death penalty or life imprisonment, the combined periods of prosecutor and court-ordered detentions may not exceed six months in cases of misdemeanors and 18 months in cases of felonies. After the detention reaches its legal limit without a conviction, the accused person must be released immediately. Legal experts offered conflicting interpretations of the law in cases in which convictions carry the death penalty or life imprisonment, with some arguing there is no time limit to court-ordered renewals of detention in such cases.

Charges involving the death penalty or life imprisonment sometimes could apply to cases related to demonstrations, such as blocking roads or demonstrating outside

government buildings; as a result authorities might hold some appellants charged with nonviolent crimes indefinitely.

Arbitrary Arrest: The constitution prohibits arrest, search, or detention without a judicial order, except for those caught in the act of a crime. There were frequent reports of arbitrary arrest and detention. Local activists and rights groups stated that hundreds of arrests did not comply with due-process laws. For example, authorities did not charge the detainees with crimes or refer them to prosecutors and prevented access to their lawyers and families (see section 1.b.).

Pretrial Detention: The government did not provide figures on the total number of pretrial detainees. Rights groups and the quasi-governmental NCHR alleged excessive use of pretrial detention and preventative detention during trials for nonviolent crimes. Authorities sometimes held pretrial detainees with convicted prisoners. Large backlogs in the criminal courts contributed to protracted periods of pretrial detention. Estimates of the number of pretrial and preventive detainees were unreliable. According to a May 2016 report by the Egyptian Initiative for Personal Rights, at least 1,464 persons in four governorates remained in detention without bail for more than two years without a conviction and at various stages in the legal process. According to a 2015 report by the NCHR, citing Interior Ministry figures, at least 7,000 persons remained in detention without a conviction at various stages in the legal process on charges related to incidents after mid-2013, including approximately 300 “activists.” Most others were affiliated with the MB, according to the NCHR.

On June 30, Ministry of Interior authorities arrested Ola al-Qaradawi and her husband Hosam Khalaf while they were on vacation in the country. HRW reported the couple is being held in solitary confinement in Cairo, have limited access to a lawyer, and have yet to be formally charged but are being investigated in

connection with belonging to the MB and spreading information aimed at distorting Egypt's image.

On April 16, following almost three years of detention, the Cairo Criminal Court acquitted spouses Aya Hijazi and Mohamed Hassanein, founders of the Belady Foundation NGO, and their codefendants of torturing children, sexual assault, forcing children to participate in illegal demonstrations, and operation of a criminal group for the purposes of trafficking, among other charges. Authorities had held them in detention without bail since 2014. Local human rights groups described the charges against them as baseless and depicted the delays in the defendants' trial as spurious. While the first trial hearing was held in 2015, according to local human rights groups, authorities delayed proceedings on procedural grounds and the defense could not begin to argue its case until February 2016.

Authorities have held photojournalist Mahmoud Abu Zeid (known as Shawkan) in detention without bail since 2013. Authorities arrested him while he was taking pictures during the security forces' dispersal of the MB sit-in at Rabaa al-Adawiya Square in Cairo. Authorities charged Shawkan and 737 other defendants with belonging to the MB, possessing firearms, and murder. The court issued a decision to continue his detention during trial, according to his lawyers. The trial began in 2015, but no substantive hearings have taken place. The next hearing was scheduled for January 2, 2018.

Detainee's Ability to Challenge Lawfulness of Detention before a Court: According to the constitution, detainees have the right to challenge the legality of their detention before a court, which must decide if the detention is lawful within one week or otherwise immediately release the detainee. In practice authorities deprived some individuals of this right, according to international and local human rights groups.

Amnesty: The constitution gives the president the power to grant a pardon or reduce a sentence after consulting with the cabinet. According to press reports, as of September the president had used this authority to pardon more than 2,000 prisoners—generally those who had served more than one-half their sentences, including secular activists, student protesters, MB members, and others.

E. DENIAL OF FAIR PUBLIC TRIAL

The constitution provides for an independent judiciary, and the government generally respected judicial independence and impartiality. Individual courts sometimes appeared to lack impartiality and to arrive at outcomes that were politically motivated or without individual findings of guilt. The government generally respected court orders. Judicial and executive review is available to individuals sentenced to the death penalty.

Some trials involving hundreds of defendants continued, particularly in cases involving demonstrators sympathetic to former president Morsi and the MB in 2013 and 2014.

On September 18, a mass trial of 494 demonstrators concluded when a court acquitted 52 persons, sentenced 43 persons to life in prison, 17 persons to 15-year prison terms, 67 persons to 10-year terms, and 216 persons to five-year terms. Acquitted individuals included Irish-Egyptian citizen Ibrahim Halawa, who had asserted in an article published online in September 2016 that authorities tortured him while in prison, mostly through beatings. The sentences of the remaining defendants were unclear. Authorities arrested the defendants, including several minors, in 2013 for participating in protests following the removal of former president Morsi from power. AI stated there was only evidence against two of the 330 defendants who had been in pretrial detention for more than four years.

Of two retrials based in Minya, authorities resolved one with hundreds of defendants, and one continued at year's end. On August 7, the Minya Criminal Court sentenced 24 persons to death, 12 of them in their absence, and a further 119 to life in prison, eight of them in their absence in connection with charges of killing a police officer and attempting to kill two other police officers in 2013. It sentenced a further two defendants to 10 years in prison and acquitted the remaining 238 defendants. Four defendants died while waiting for the case's resolution.

A retrial continued in the case of 683 individuals, including MB Supreme Guide Mohamed Badie, charged with attacking a police station and killing two police officers in 2013. In 2015 the Court of Cassation ordered a retrial after the Minya Criminal Court issued provisional death sentences in 2014 to 683 defendants. In December 2016 a judge ordered the release of 13 defendants pending trial. The next hearing in the retrial was scheduled for December 31.

In April the government enacted a law giving the president the authority to appoint the chiefs of top courts. Previously judicial seniority played the deciding role in such appointments. On July 19, in a move viewed by some observers as political reprisal, President Sisi appointed Ahmed Abo al-Azm instead of the more senior Yehia al-Dakrouy as Chief Justice of the Council of State, a judicial body providing legal advice to the government. Judge Yehia al-Dakrouy had ruled against the government in 2016 on the controversial issue of the sovereignty of two Red Sea islands, which the government transferred to Saudi Arabia.

The law imposes penalties on individuals designated by a court as terrorists, even without criminal convictions. In January a court approved the addition of 1,538 persons to a national terrorists list. Individuals placed on the list included former president Mohamed Morsi and his sons; senior MB leaders and their sons and daughters; Safwan Thabet, a businessperson; the former soccer star Mohamed

Abu Trika; Mostafa Sakr, a newspaper publisher; and Hisham Gaafar, a journalist. Effects of a designation include a travel ban, asset freeze, loss of political rights, and passport cancellation. HRW claimed designated individuals could not contest the designation, and authorities may not have informed most of their designation before the court ruled. The decision may be appealed directly to the country's highest appeals court.

The constitution states: "Civilians may not stand trial before military courts except for crimes that represent a direct assault against military facilities, military barracks, or whatever falls under their authority; stipulated military or border zones; military equipment, vehicles, weapons, ammunition, documents, military secrets, public funds or military factories; crimes related to conscription; or crimes that represent a direct assault against its officers or personnel because of the performance of their duties."

Nevertheless, authorities used military courts to try civilians during the year. Public access to information concerning military trials was limited. Military trials were difficult to monitor because media were usually subject to restraint orders. Rights groups and lawyers stated defense attorneys in military trials had difficulty gaining access to their clients and to documentation related to the cases.

According to HRW military courts had tried at least 7,400 civilians since the issuance of a 2014 decree ordering the military to "assist" police in securing "vital public facilities."

On July 27, the Western Alexandria Prosecutor's office referred 235 persons to military court on charges including violence and damaging public property during rioting following a soccer match. According to press reporting, 150 of the 235 detainees were younger than 18 years old. A military court ordered their release on December 17.

On December 26, authorities executed 15 individuals convicted in 2015 by a military court of staging a deadly attack on an army checkpoint in Sinai in 2013. Three others defendants were acquitted and a minor was sentenced to five years in jail. Human rights organizations claimed legal procedures against the men were flawed and at least one of the 15 may have been tortured in detention.

On December 30, a court convicted former president Morsi and 18 others, including activist Alaa Abdel-Fattah, of insulting the judiciary. The defendants received three-year prison sentences. On September 16, the Court of Cassation upheld former president Morsi's 25-year prison sentence for leading the MB and canceled a 15-year sentence imposed in 2016 on charges of spying for Qatar. Morsi remained a defendant in two pending cases related to participating in a prison break and spying for Hamas. Some local and international rights groups questioned the impartiality of proceedings. According to press statements by Morsi's lawyers, authorities have allowed them to visit him three times since his 2013 incarceration; the most recent visit took place in November.

TRIAL PROCEDURES

The law provides for the right to a fair and public trial, but the judiciary often failed to enforce this right.

The law presumes defendants are innocent, and authorities usually inform them promptly and in detail of charges against them. Defendants have the right to be present at their trials. Attendance is mandatory for individuals charged with felonies and optional for those charged with misdemeanors. Civilian criminal and misdemeanor trials usually are public. Defendants have the right to consult an attorney, and the government is responsible for providing counsel if the defendant cannot afford a lawyer. Defendants have the right to free interpretation from the

moment charged through all appeals. The court assigns an interpreter. The law allows defendants to question witnesses against them and to present witnesses and evidence on their own behalf. Defendants have adequate time and facilities to prepare a defense. The constitution provides for the right of an accused person to remain silent in his own trial. Defendants have the right of appeal up to the Court of Cassation. Judges must seek the nonbinding review of the Grand Mufti on all death sentences, and the president must confirm all such sentences.

The law permits individual members of the public to file charges with the prosecutor general, who is charged with deciding whether the evidence justifies referring the charges for a trial. Observers reported, however, that, due to unclear evidentiary standards, the Prosecutor General's Office investigates and refers for trial the overwhelming majority of such cases, regardless of the strength of the evidence.

On October 7, the prime minister decreed that certain economic and security crimes, including violations of protest laws, should be referred to state security courts instead of the public prosecutor. State security courts may have two military judges appointed to sit alongside three civilian judges and verdicts of state security courts can only be appealed on points of law rather than the facts of the case as in a civilian court.

Military courts are not open to the public. Defendants in military courts nominally enjoyed the same due process rights, but the military judiciary has wide discretion to curtail these rights in the name of public security. Military courts often tried defendants in a matter of hours, frequently in groups, and sometimes without access to an attorney, leading lawyers and NGOs to assert they did not meet basic standards of due process. Consequently, the quick rulings by military courts sometimes prevented defendants from exercising their rights. Defendants in military courts have the right to consult an attorney, but sometimes authorities denied

them timely access to counsel. According to rights groups, authorities permitted defendants in military trials visits from their attorneys every six months, in contrast with the civilian court system, where authorities allowed defendants in detention attorney visits every 15 days.

The Military Judiciary Law governing the military court system grants defendants in the military court system the right to appeal up to the Supreme Military Court of Appeals. The president must certify sentences by military courts.

POLITICAL PRISONERS AND DETAINEES

There were reports of political prisoners and detainees, although verifiable estimates were not available. The government claimed there were no political prisoners and all persons in detention had been or were in the process of being charged with a crime. Human rights groups and international observers maintained the government detained or imprisoned as many as several thousand persons solely or chiefly because of their political beliefs. One local rights organization estimated there were more than 2,000 political prisoners in the Borg al-Arab Prison alone. A local rights group considered any persons arrested under the 2013 demonstrations law to be political prisoners.

CIVIL JUDICIAL PROCEDURES AND REMEDIES

Individuals had access to civil courts for lawsuits relating to human rights violations and filed such lawsuits during the year. Nonetheless, courts often dismissed cases or acquitted defendants for lack of evidence or conflicting witness testimonies. Individuals and organizations can appeal adverse domestic decisions to the African Commission on Human and Peoples' Rights.

PROPERTY RESTITUTION

In response to a continuing terrorist insurgency in Sinai, the government continued its efforts to establish a buffer zone in the region to interdict weapons smuggling and incursions to and from the Gaza Strip. According to government statements to media, authorities demolished 3,272 residential, commercial, administrative, and community buildings between mid-2013 and August 2016. In October authorities expanded the buffer zone resulting in the destruction of more than 100 homes and hundreds of acres of farmland. Human rights groups stated that the military had evicted without adequate notice thousands of persons as part of the demolitions. The government promised it would appropriately compensate all families whose homes it destroyed. Some persons complained they did not receive adequate or timely restitution. The government did not compensate residents for agricultural land.

F. ARBITRARY OR UNLAWFUL INTERFERENCE WITH PRIVACY, FAMILY, HOME, OR CORRESPONDENCE

The constitution prohibits such actions and provides for the privacy of the home, correspondence, telephone calls, and other means of communication. There were reports, however, that security agencies sometimes placed political activists, journalists, foreigners, and writers under surveillance; monitored their private communications; screened their correspondence, including email and social media accounts; examined their bank records; searched their persons and homes without judicial authorization; and confiscated personal property in an extrajudicial manner.

G. ABUSES IN INTERNAL CONFLICT

The conflict involving security forces, militant groups, and terrorist organizations in Sinai continued. Rights groups and international media reported the armed forces

used indiscriminate force during military operations resulting in killings of civilians and destruction of property, particularly along the border with Gaza, where there was extensive smuggling of weapons and other equipment to terrorist groups. The government did not report any civilian casualties during operations in Sinai.

Killings: At year's end the government recognized no civilian deaths due to security force actions. Human rights organizations stated some persons allegedly killed in raids on terrorist hideouts in Sinai had in fact been in state detention for months before their deaths (see section 1.a.). On April 22, a Turkish-based media network released a video apparently showing members of the armed forces killing detainees. Human rights organizations claimed eight individuals were killed, including one minor. The government claimed the video was a fabrication.

Human rights groups reported the cities of Rafah and al-Arish witnessed repeated artillery and rocket bombardment as well as sporadic gunfire from ambushes affiliated with security forces. On January 20, a drone strike killed 10 civilians attending Friday prayers in the North Sinai city of Rafah. An artillery shell killed eight civilians when it fell on a house in Southern Rafah in January, according to press reports.

Human rights groups and media also reported authorities killed civilians for allegedly not adhering to security personnel instructions at checkpoints or for unknown reasons. For example, according to press reports, security forces shot and killed Abdul-Latif al-Nasayira at the Raysa military checkpoint in Arish, North Sinai Governorate, as he exited his car at the Raysa checkpoint vehicle queue to get food on February 7. Security forces injured another individual.

Militants and terrorist groups in Sinai also targeted the military and civilians, using tactics including gunfire and beheading. ISIS claimed in a public infographic that, between October 2016 and September, it had killed 86 persons and deployed 27

improvised explosive devices. On July 8, a suicide bomb attack on an army checkpoint in North Sinai Governorate killed 26 soldiers, according to security sources. On November 24, militants attacked the Sufi-associated al-Rawda mosque in Bir al-Abd during Friday prayers, killing 309 persons, including 27 children. More than 100 additional individuals were injured. No group has claimed responsibility for the attack. According to the prosecutor general, the 25-30 attackers, some of whom carried ISIS flags, shot at worshipers and ambulances as they left the mosque.

There were multiple reports of attacks on military-owned or -affiliated industries and that militants killed civilians for allegedly cooperating with security forces. For example, on November 10, militants attacked a convoy of cement trucks from an Egyptian military factory in central Sinai resulting in the deaths of eight civilian employees and two soldiers.

IS-Sinai reportedly targeted Coptic Christian civilians in Sinai. In February IS-Sinai claimed responsibility for the deaths of seven Coptic Christian civilians in al-Arish. One of the civilians was beheaded and another set on fire, according to press reports. In response to the attacks, at least 90 Coptic families reportedly fled to Ismailia.

Fighting between armed Bedouin tribal groups and IS-Sinai also resulted in deaths. In April members of the Tarabin tribe reportedly set on fire and killed a captured member of IS-Sinai. In May, IS-Sinai killed 10 members of the Tarabin tribe in an attack.

Abductions: Militants abducted civilians in North Sinai. According to human rights groups, militants rarely released abductees; they were more often shot or beheaded. According to human rights groups, militants abducted civilians rumored or known to cooperate with security forces. Militants warned citizens of North

Sinai not to cooperate with the security forces or risk beheading. On February 22, militants kidnapped and later killed two Coptic Christians as part of a wave of killings targeting Copts (see above).

Other Conflict-related Abuse: According to press reports, militants attacked health-care personnel and ambulances trying to reach security checkpoints or transfer injured soldiers to hospitals. State authorities forcibly displaced civilians from the Rafah border area in an attempt to curb smuggling operations, according to press reports (see section 2.d.).

Section 2.

Respect for Civil Liberties, Including:

A. FREEDOM OF SPEECH AND PRESS

The constitution provides for freedom of expression, including for the press, but includes a clause stating, “It may be subject to limited censorship in times of war or public mobilization.” The government frequently did not respect these rights.

Freedom of Expression: Citizens expressed their views on a wide range of political and social topics. The government investigated and prosecuted critics for alleged incitement of violence, insults to religion, insults to public figures and institutions such as the judiciary and the military, or violation of public morals. Individuals also faced societal and official harassment for speech viewed as sympathetic to the MB, such as using a hand gesture showing four fingers, a reference to the 2013 security operation to disperse the sit-in at Rabaa al-Adawiya Square.

The law provides a broad definition of terrorism, to include “any act harming national unity or social peace.” The president has stated that lying is a form of

terrorism. Human rights observers expressed concern that authorities could use the ambiguous definition to stifle nonviolent speech and nonviolent opposition activity.

On May 21, the Court of Cassation cancelled the sentence against author Ahmed Naji and ordered his retrial. In 2016 authorities sentenced Naji to two years in prison on charges of violating public morals based on the publication of an excerpt of his novel, *The Use of Life*, which contained explicit descriptions of sexual acts and illegal drug use. Authorities had acquitted Naji of the same charges in January 2016, but prosecutors appealed the decision. On July 6, Cairo airport authorities prevented author Naji from traveling to New York, informing him he was subject to an exit ban. The date for the retrial was not set as of December.

On December 12, authorities sentenced both pop singer Shyma and music video director Mohamed Gamal to two years in prison for “inciting debauchery.” The charges stemmed from a music video in which the singer eats an apple and a banana in an allegedly suggestive manner.

Press and Media Freedom: Independent media were active and expressed a variety of views but with significant restrictions. The constitution, penal code, and media and publications law govern media issues. The government regulated the licensing of newspapers and controlled the printing and distribution of a majority of newspapers, including private newspapers and those of opposition political parties. The law does not impose restrictions on newspaper ownership.

The more than 20 state-owned media outlets broadly supported official state policy. The National Press Authority holds the power to appoint and dismiss editorial leadership of state-owned print outlets. The governmental Egyptian Radio and Television Union appointed the heads of state-owned radio and television channels. Both state-owned and private media (including television and online

journalism) sometimes criticized the government, but dominant media narratives supported the president and his policy initiatives.

As of December the Committee to Protect Journalists reported there were 20 imprisoned journalists in the country. Authorities continued to keep journalist Ismail Alexandrani in detention without formal charges as of December. Authorities detained the Egyptian investigative researcher in 2015 at Hurgada airport upon his return from Berlin. In November 2016 a court ordered his release, but authorities successfully appealed the release order. According to local rights groups, Alexandrani was under investigation for “reporting false news” and “joining a banned group.” Alexandrani’s reporting and scholarly work focused on Sinai.

In May police raided the offices of *al-Borsa*, an Arabic financial newspaper, and *Daily News Egypt*, the only independent English-language newspaper. Mostafa Sakr, chairperson of *Business News*—the parent company of both newspapers—was detained by police but released later that day. Authorities ordered Sakr’s assets frozen after they designated him as a terrorist earlier in the year (see section 1.e.). In August the state-run committee assigned to seizing funds and assets of MB-affiliated members assigned the state-run newspaper *Akhbar al-Youm* to assume operation of the *Daily News Egypt*, as well as the Arab International Company for Commercial Agencies, parent company of prominent Alef bookstore chain.

In March a court reduced a two-year sentence for harboring fugitives against Yehia Kalash, former president of the press syndicate, and Gamal Abdel Reheem and Khaled el-Balshy to a one-year suspended sentence. The defendants appealed the sentence again, and the case was pending at year’s end. The charges stemmed from their efforts to prevent the detention of two journalists during a May 2016 police raid on the press syndicate headquarters.

On May 8, a court reduced the sentences of television presenter Mohamed Adly and journalists Samhi Mostafa and Abdullah Fakharany from life in prison to five years and acquitted news organization managers Hany Salah-el-Deen and Mosad al-Barbary. Authorities convicted the five, along with Hassan al-Kabbani, in 2015 on charges including inciting violence and disseminating false news. Kabbani was not included in the retrial.

On August 14, a court ordered a 45-day extension to *al-Jazeera* journalist Mahmoud Hussein's pretrial detention. In December 2016 authorities arrested Hussein in Cairo, accusing him of disseminating false news and receiving monetary funds from foreign authorities to defame the state's reputation. Subsequently, authorities have held him in pretrial detention, and, according to press reports, he has yet to face formal charges. On August 24, Hussein's daughter told the press that prison authorities denied Hussein treatment for a broken arm.

Violence and Harassment: According to media reports and local and international human rights groups, state and nonstate actors arrested and imprisoned, harassed, and intimidated journalists. Foreign correspondents reported cases where the government denied them entry, deported them, and delayed or denied issuance of media credentials; some claimed these actions were part of a government campaign to intimidate foreign media.

On April 24, authorities denied Sudanese journalists, Taher Saty and Kamal Eddin, entry into the country when they arrived at Cairo International Airport after returning from vacation in France. According to a Sudanese Journalists' Network statement, authorities deported both individuals within 24 hours.

On August 17, authorities arrested crime reporter Abdallah Ras and took him to a National Security Agency office, according to his employer *al-Bawaba News*. The Interior Ministry initially denied arresting and detaining Rashad, and his employer

and family did not know his whereabouts or what charges he faced for more than 11 days. He was charged with joining a banned group, and his next hearing was scheduled for December.

Censorship or Content Restrictions: Official censorship occurred. The SOE empowers the president empowered to monitor newspapers, publications, editorials, drawings, and all means of expression and to order the seizure, confiscation, and closure of publications and print houses.

On, April 10, April 11, and September 3, authorities banned the printing of daily newspaper *al-Bawaba*. According to press reports, the banned issues contained articles critical of the Interior Ministry and its response to terrorist attacks.

On August 6, the state printing press refused to publish newspaper *al-Masryoun's* weekly edition. According to an *Arabic Network for Human Rights Information* report, the printing press told *al-Masryoun* staff that a security institution ordered the press not to print the newspaper. According to press reports, the August 6 edition of *al-Masryoun* contained an article critical of the country's dealings with Israel.

Some activists and many journalists reported privately they self-censored criticism of the government or comments that could be perceived as sympathetic to the MB, due to the overall anti-MB and progovernment media environment. Publishers were also wary of publishing books that criticized religious institutions, such as al-Azhar, or challenged Islamic doctrine.

On November 19, police raided the downtown Cairo office of Merit Publishing House and detained a volunteer on suspicion of being in possession of unregistered books. On December 28, police returned to Merit, confiscated two

books, and took Merit's owner to the police station for questioning. He was subsequently released.

Libel/Slander Laws: Local and international rights groups reported several cases of authorities charging and convicting individuals with denigrating religion under the so-called blasphemy law, primarily targeting Christians but also Muslims.

In May authorities charged former under secretary of the Ministry of Islamic Endowment Sheikh Salem Abdul Galeel with denigration of religion and undermining national unity for stating on his television program *Muslims Are Asking* that Christians are infidels (kuffar) and their faith is corrupt. Galeel's television show was canceled, and the Ministry of Islamic Endowments banned him from preaching in any mosque. Galeel was released on bail; a hearing remained pending at year's end.

In July authorities charged Coptic Orthodox priest Makary Younan with denigration of religion, discrimination against a specific group, disturbing peace and order in the country, exploiting religion to spread thoughts that aimed to stir strife and insult divine religions, and harming national unity and social coherence. Younan stated in a sermon that, according to both Islamic and non-Islamic historical sources, Egypt had been a Christian-majority country until it was defeated by an Islamic army. On November 12, the court dropped the case after the prosecuting lawyer agreed to reconcile with Younan.

National Security: The law allows government censors to block the publication of information related to intelligence and national security.

The law imposes a fine on any person who "intentionally publishes...or spreads false news." The fine is many times the average annual salary of most local journalists.

Judges may issue restraint orders to prevent media from covering court cases considered sensitive on national security grounds. Rights groups stated authorities sometimes misused the orders to shield government, police, or military officials from public scrutiny. Citing safety and security, the government and military restricted media access to many parts of North Sinai.

On April 12, an Alexandria court sentenced lawyer Mohamed Ramadan to 10 years in prison, followed by five years under house arrest and a five-year ban on using the internet. It convicted him of insulting the president, misusing social media platforms, and incitement to violence under the country's counterterrorism law, as a result of comments he made on social media. In December 2016 authorities arrested Ramadan while he was visiting clients at Montazah Police Station in Alexandria.

On May 19, a rights lawyer told media that authorities had arrested approximately 30 activists on charges relating to sharing posts critical of the government on social networking sites. The charges, which fall under the country's antiterrorism law, included inciting public opinion against the government, insulting the president, obstructing state institutions, and seeking to overthrow the regime.

INTERNET FREEDOM

The constitution protects the right to privacy, including on the internet. The constitution provides for the confidentiality and "inviolability" of postal, telegraphic, and electronic correspondence; telephone calls; and other means of communication. They may not be confiscated, revealed, or monitored except with a judicial order, only for a definite period, and only in cases defined by law. The constitution prohibits the government from "arbitrarily" interrupting, disconnecting, or depriving citizens seeking to use all forms of internet communications.

The government, however, restricted and disrupted access to the internet and censored online content. There were credible reports the government monitored private online communications without appropriate legal authority. Law enforcement agencies restricted or disrupted individuals' access to the internet, and the government monitored social media accounts and internet usage, relying on a law that only allows targeted interception of communications under judicial oversight for a limited period and does not permit indiscriminate mass surveillance. The public prosecutor prosecuted individuals accused of posting "insulting" material.

The counterterrorism law criminalizes the use of the internet to "promote ideas or beliefs that call for terrorist acts" or to "broadcast what is intended to mislead security authorities or influence the course of justice in relation to any terrorist crime." The law also authorizes the public prosecutor and investigators to monitor and record online communications among suspects in terrorism cases for a period of 30 days, renewable in 30-day increments. The law does not specify a maximum period.

On April 20, police arrested Dostour Party member Nael Hassan on charges including insulting the president online based on social media comments, according to public statements by his lawyer. On November 1, he was released.

There were multiple reports that the government temporarily blocked access to internet messaging applications. For example, on July 7, the government blocked an internet communication site for mobile users; the block lasted one day.

On June 24, authorities convicted Ghazy Sami Ghazy and fined him EGP 30,000 (\$1,700) on charges of insulting the president in relation to a poem he published on Facebook. On the same day, authorities acquitted him of publishing fake news. In March authorities arrested and imprisoned him on charges including spreading

and publishing false information, preventing state institutions from carrying out their duty, and insulting the president via poems on his Facebook account.

The government attempted to disrupt the communications of terrorist groups operating in Sinai by cutting telecommunication networks: mobile services, internet, and sometimes landlines. Cuts generally occurred from 6 a.m. to 6 p.m. Networks were again fully accessible at approximately 8 p.m. and sometimes later. Cuts also disrupted operations of government facilities and banks.

The law obliges internet service providers and mobile operators to allow government access to customer databases, allowing security forces to obtain information regarding activities of specific customers, which could lead to lack of online anonymity. Individuals widely used social media sites, such as Twitter and Facebook, to spread criticism of the government and security forces.

There were reports authorities monitored social media and internet dating sites to identify and arrest lesbian, gay, bisexual, transgender, and intersex (LGBTI) individuals (see section 6, Acts of Violence, Discrimination, and Other Abuses Based on Sexual Orientation and Gender Identity).

As of December the government had blocked more than 400 websites without providing a clear legal basis or authority responsible for the blocks. The blocked sites included international NGOs, local human rights NGOs, and numerous virtual private network services. On May 24, the government announced it had blocked 21 websites, mostly independent and MB-affiliated news sites, on charges of inciting terrorism and spreading lies. Some blockages appeared to be in response to critical coverage of the government. For instance, authorities blocked one website less than 48 hours after it published a report detailing systematic government use of torture.

In February, Citizen Lab and the Egyptian Initiative for Personal Rights released a report documenting a large-scale and sophisticated phishing campaign targeting human rights NGOs, lawyers, journalists, and political activists that began in November 2016. The organizations were unable to identify a perpetrator of the attacks.

According to the International Telecommunication Union, 41 percent of the population used internet in 2016. Media reported 1.7 million active users on Twitter and stated 35 million persons used Facebook.

ACADEMIC FREEDOM AND CULTURAL EVENTS

There were reports of government restrictions on academic freedom and cultural events. In June the Ministry of Education removed mention of the country's 2011 and 2013 revolutions from high school history class curriculums. In 2016 Minister of Higher Education Ashraf al-Shihy published a statement requiring private universities to review all research papers and thesis dissertations to assure they do not include any "direct or indirect insult to societies or individuals belonging to any brotherly or friendly countries." According to media and local rights groups, a degree of self-censorship, similar to that reported by nonacademic commentators, allegedly existed when academics publicly commented on sensitive political and socioeconomic issues. Faculty members needed security agency approval to travel abroad for academic purposes. Faculty and officials at public universities and research centers also must obtain Ministry of Foreign Affairs permission to travel abroad. In August an official at the country's embassy in Berlin threatened to cancel researcher Taqadum al-Khatib's PhD scholarship if he did not surrender his passport and access to his personal Facebook account, according to a local NGO report. In September, Damietta University cancelled al-Khatib's scholarship, and press reported he was dismissed from the university in October. According to the

university's dean, al-Khatib violated the terms of his scholarship when he changed his research topic without informing the university board. Human rights groups stated the university dismissed him for his research on the sovereignty of the disputed Tiran and Sanafir islands.

The Ministry of Education began a campaign to remove all MB members from teaching positions before the start of the 2017-18 academic year. Press reported that Asyut University terminated six teaching staff members, and Cairo University announced it had suspended four professors for alleged MB affiliation.

There was censorship of cultural events. The Ministry of Culture must approve all scripts and final productions of plays and films. The ministry censored foreign films to be shown in theaters but did not censor the same films sold as DVDs.

On July 2, the rock band Cairokee announced the General Authority for Censorship of Works of Art rejected four songs on their new album "A Drop of White" and banned the entire album from sale in stores and from broadcast on television and radio. The band continued offering the album online and played the music during concerts. Band members told press they believed authorities banned the four songs because of their "political overtones."

The Syndicate of Musicians stated that it would ban future concerts by Lebanese band "Mashrou' Leila" after concert-goers waved a rainbow flag in support of LGBTI rights during a September performance in the country (see section 6).

B. FREEDOM OF PEACEFUL ASSEMBLY AND ASSOCIATION

The government restricted freedoms of peaceful assembly and association.

FREEDOM OF PEACEFUL ASSEMBLY

The constitution provides for freedom of assembly “according to notification regulated by law.” Authorities implemented an amended 2013 demonstrations law that includes an expansive list of prohibited activities, giving a judge the authority to prohibit or curtail planned demonstrations after submitting an official memorandum. Domestic and international human rights organizations asserted the law did not meet international standards regarding freedom of assembly. In January the government imposed an exclusion zone of 2,600 feet around vital governmental institutions in which protests are prohibited.

There were protests throughout the year that varied widely in size, and some occurred without government interference. In other cases the government rigorously enforced the law restricting demonstrations, even in cases of small groups of protesters demonstrating peacefully.

The number of persons arrested under the protest law was not publically available, although research center Daftar Ahwal reported at least 37,000 cases of individuals stopped, arrested, or charged under the protest law between November 2013 and September 2016. Authorities charged 15,491 individuals under the protest law resulting in 6,382 convictions and 5,083 acquittals.

On February 1, security forces arrested 29 members of the Ultras Ahlawy, a fan club of the Ahly soccer team in Cairo. According to press reports, the group had been planning a commemoration of the Port Said stadium riot in which 70 persons died. Prior to the arrests, the group cancelled the commemoration, citing police warnings, raids, and arrests of its members.

On November 8, the Court of Cassation reduced the prison sentence of prominent activist Abdel Fattah from five years’ “rigorous” imprisonment to five years’

imprisonment followed by five years of probation. No further appeals are possible. In 2015 the Cairo Criminal Court sentenced Abdel Fattah to five years in prison on charges of breaking the demonstrations law related to his participation in a protest in front of the Shura Council in 2013.

Thousands of persons whom authorities arrested during 2013 and 2014 due to their participation in demonstrations (some of which were peaceful) remained imprisoned; however, authorities released others who had completed their sentences. Authorities held such individuals under charges of attending an unauthorized protest, incitement to violence, or “blocking roads.” Human rights groups claimed authorities inflated or used these charges solely to target individuals suspected of being members of groups in opposition to the government or those who sought to exercise the rights to free assembly or association.

In January authorities released activists Ahmed Maher and Mohamed Adel from prison after they completed three-year sentences for violating the protest law. Authorities placed both individuals on probation for the next three years and required them to reside in the local police station from 6 p.m. to 6 a.m. each day. Police reportedly physically assaulted Maher and ordered him to mop the floor of the local police station during his nights at the station.

According to press reports, student groups focused on entertainment while political activities virtually disappeared in light of pressure from authorities. Universities held student union elections in December for the first time in two years.

FREEDOM OF ASSOCIATION

The constitution provides for freedom of association. The law governing associations, however, significantly restricts this right.

On May 30, the government enacted a new NGO law. The law affects all nongovernmental civil society associations, the overwhelming majority of which were domestic welfare, educational, and environmental foundations. It includes among its provisions: creation of a new administrative body that includes members of security services and can regulate all NGOs that receive foreign funding and reject registration applications by not responding for 60 days; rules targeting all aspects of NGO work; and prison sentences among the penalties for violations. Local and international NGOs stated the law could make it impossible for them to operate independently. As of December the government had not issued implementing regulations. As a result several local NGOs stated that while they continued to operate under the previous law, government agencies have frozen activities or carried out stricter registration and security procedures, in anticipation of implementation of the new law. The Ministry of Social Solidarity continued to apply the previous law in a highly restrictive manner on international and domestic organizations receiving international funding, denying government approval of programs that domestic and international organizations sought to implement, or granting governmental approval after lengthy delays (which in some cases amounted to effective denials). Rights groups reported several incidents of security services ordering the cancellation of planned training programs or other events. In February the Ministry of Social Solidarity suspended 500 NGOs in Qalioubeya Governorate for lack of activity and failure to achieve objectives, according to a ministry statement. In July the Ministry of Social Solidarity dissolved 22 NGOs in Luxor, alleging they had MB connections.

The penal code criminalizes the request for or acceptance of foreign funds, materiel, weapons, ammunition, or “other things” from states or NGOs “with the intent to harm the national interest.” Those convicted may be sentenced to life in prison (or the death penalty in the case of public officials) for crimes committed during times of war or with “terrorist purpose.” On September 10, authorities

arrested Ibrahim Metwally Hegazy, founder of the Association of the Families of the Disappeared, at the Cairo International Airport and held him incommunicado. Hegazy was traveling to Geneva to participate in the UN Working Group on Enforced and Involuntary Disappearances. His whereabouts were not known until September 12, when the government confirmed his arrest. The charges against him included “communicating with a foreign body to harm the Egyptian national interest.” On September 21, Hegazy told his lawyers authorities tortured him during the first three days they held him. He remained in detention, and his next hearing was scheduled for December.

As of December the conviction of 43 mostly foreign NGO workers sentenced in 2013 for operating unlicensed organizations and receiving foreign funding without government permission stood. Appeals for some defendants were pending; defendants had not yet filed appeals in the remainder of cases.

The MB, the MB-affiliated Freedom and Justice Party, and its NGO remained illegal, and the MB was a legally designated terrorist organization.

Authorities continued investigations of local NGOs that received foreign funding under a case originally brought in 2011. On August 22, authorities released human rights lawyers Malek Adly and Osama Khalil on bail; both faced charges relating to their work with the Hisham Mubarak Law Center. On June 20, authorities released human rights activist Hafiz Tayel on bail; his charges included receiving foreign funding to harm national security in connection with his NGO, the Egyptian Center for the Right to Education. On May 24, authorities released human rights defender Mohamed Zaree of the Cairo Institute for Human Rights Studies on bail after they charged him with receiving funds from foreign entities and spending them with intent to harm national security and national interests. On January 11, a Cairo criminal court ordered an asset freeze against human rights defenders Mozn Hassan of Nazra for Feminist Studies and Mohamed Zaree and Atef Hafez of the

Arab Penal Reform Organization. The court also froze the assets of Nazra for Feminist Studies and the Arab Penal Reform Organization.

In February authorities closed the offices of el-Nadeem Center for the Rehabilitation of Victims of Violence (also registered under the name el-Nadeem for Psychological Rehabilitation), which documents torture and other forms of abuse and provides counseling for torture and rape victims. In February 2016 the center received administrative closure orders from three governmental bodies, and in November 2016 authorities froze its assets. The organization asserted the closure was politically motivated, targeting el-Nadeem because of its work on torture, deaths in detention, and impunity for these crimes. As of December authorities had not officially rescinded the order, but the organization continued to operate in a limited capacity.

C. FREEDOM OF RELIGION

See the Department of State's *International Religious Freedom Report* at www.state.gov/religiousfreedomreport/.

D. FREEDOM OF MOVEMENT, INTERNALLY DISPLACED PERSONS, PROTECTION OF REFUGEES, AND STATELESS PERSONS

The law provides for freedom of internal movement, foreign travel, emigration, and repatriation, and the government generally respected these rights, albeit with some exceptions, including the handling of potential refugees and asylum seekers. The government cooperated with the Office of the UN High Commissioner for Refugees (UNHCR) and other humanitarian organizations in providing protection and assistance to refugees, asylum seekers, stateless persons, and other persons of concern. Authorities maintained a "no-fly" list that prevented some defendants in court cases from fleeing the country.

Abuse of Migrants, Refugees, and Stateless Persons: Media, NGOs, and UNHCR staff reported multiple cases of attacks against refugees, particularly women and children. According to UNHCR, refugees sometimes reported harassment, sexual harassment, and discrimination. Refugee women and girls, particularly sub-Saharan Africans, faced the greatest risk of societal, sexual, and gender-based violence.

According to UNHCR and press reports, police security sweeps increased in neighborhoods known to house Syrian, Sudanese, and other African refugees, as well as migrants, resulting in increased detentions. Detainees reported authorities subjected them to racist verbal abuse, beatings, and torture during detention.

While reports of abuse by Sinai-based facilitators and captors of irregular migrants declined, a shift in human trafficking activities to mainland Egypt accompanied this decline due to the security situation in Sinai and Libya.

In-country Movement: Citizens and foreigners may not travel in areas of the country designated as military zones. The government sought to prevent private individuals, journalists, and civil society activists from entering the Sinai Peninsula, stating it was to protect their safety; however, some persons avoiding government detection did enter Sinai, particularly irregular migrants attempting to reach the Israeli border and the western border zone.

Foreign Travel: The constitution states, “No citizen may be prevented from leaving the State territory.”

Men who have not completed compulsory military service, however, may not travel abroad or emigrate. National identification cards indicated completion of military service.

Authorities required citizens between ages 18 and 45 to obtain permission from the Interior Ministry to travel to 16 countries: Guinea, Indonesia, Iraq, Israel, Jordan, Lebanon, Libya, Malaysia, Qatar, South Africa, South Korea, Sudan, Syria, Thailand Turkey, and Yemen. Enforcement of these regulations was sporadic. The government stated it intended these regulations to make it more difficult for citizens to join terrorist groups and to stop flight of criminals. These regulations also affected the ability of other individuals to travel outside the country.

The government increasingly imposed travel bans on human rights defenders, and political activists. In March 2016 *Mada Masr* reported there had been 554 cases of politically motivated banned entry and exit imposed by authorities in airports since 2011. Local human rights groups maintained authorities used travel bans to intimidate and silence human rights defenders, including individuals connected with NGOs facing investigation as part of the reopened NGO foreign funding case. On October 2, Cairo airport authorities prevented human rights defender Magdy Abdel Hamid from travelling to Jordan. Press reports cited his status as a defendant in the NGO foreign funding case as the reason for his ban.

Democracy activist Esraa Abdel Fattah remained unable to depart the country. In 2015 authorities prevented Abdel Fattah from departing the country and informed her that authorities had issued a travel ban in her name. She filed a lawsuit to challenge the ban, but the court dismissed the suit. In September authorities referred a case regarding comments she made on social media for military prosecution.

Exile: There was no government-imposed exile, and the constitution prohibits the government from expelling citizens or banning citizens from returning to the country. Some Mubarak- and Morsi-era politicians lived outside the country by choice and stated they faced government threats of prosecution.

PROTECTION OF REFUGEES

Refoulement: According to human rights advocates, migrants detained while attempting to enter the country irregularly were typically given two options: return to their country of origin or administrative detention. The government often contacted UNHCR upon detaining unregistered migrants and asylum seekers. The number of potential asylum seekers returned to their countries was unknown. Authorities sometimes encouraged those detained to choose to return to their countries of origin to avoid continued detention, even in cases where the individuals expressed a fear of return. There were no reports that authorities deported children to their countries of origin without their parents or an adult caregiver.

Compared with previous years, fewer Palestinian refugees from Syria entered the country illegally, intending to travel to Europe. In a number of cases, in the absence of valid travel documents or inability to confirm their identities, they faced either detention or deportation.

The Association on Freedom of Thought and Expression reported that, between July 3 and October, authorities arrested 90 to 120 Uighurs, primarily students at al-Azhar University. Some reports indicated authorities subsequently deported 12 of these individuals, and the number of individuals still in custody remained unknown. Human rights organizations reported the individuals faced arbitrary detention and torture if returned to China.

Access to Asylum: The constitution provides for the protection of political refugees, but the laws do not provide for granting asylum or refugee status, and the government has not established a comprehensive legal regime for providing protection to refugees. The government granted UNHCR authority to make refugee

status determinations. UNHCR does not register Libyan citizens, nor does it register or provide assistance to Palestinian refugees in the country.

According to UNHCR, as of August there were approximately 211,000 registered refugees and asylum seekers in the country, coming mainly from Syria (123,033), as well as from Sudan, South Sudan, Ethiopia, Eritrea, and Yemen. Since 2016 the number of Syrian nationals registered as refugees has increased. Observers attributed the increase to relaxed family reunification visa requirements, decreasing areas of ISIS control throughout the country, young men attempting to avoid conscription in the national military or armed groups, and an increased fear of raids targeting unregistered migrants. Most Syrians continued to arrive by way of Sudan, which remained the only neighboring country to which Syrians could travel without visas. The number of African refugees also increased during the year according to UNHCR, particularly among Ethiopian, Eritrean, and South Sudanese populations.

In 2012 and 2013 under the Morsi administration, the government accorded Syrians visa-free entry. Starting in mid-2013 the government applied a system of visa and security clearance requirements for Syrian nationals and Palestinian refugees from Syria, thus assuring no direct entries from Syria since Egypt lacked consular services there. Following the UNHCR high commissioner's visit in January, the country relaxed its visa requirements for Syrians seeking family reunification.

Reports of irregular movements of individuals, including asylum seekers, and detention of foreign nationals attempting to depart the country irregularly via the Mediterranean dropped dramatically during the year, according to UNHCR, following parliament's passage and enforcement of a law that dramatically increased patrols on the country's Mediterranean coast. In 2016 UNHCR documented 4,985 failed attempts to leave the country by sea; however, since the law's passage, authorities intercepted only four boats trying to leave Egyptian

waters. UNHCR observed increased African irregular departures from the country, particularly Sudanese, Eritrean, and Ethiopian nationals. Irregular migrants continued to travel steadily through the land route from Sudan (Wedi Halfa/Abu Simbel).

UNHCR access to detained registered refugees and asylum seekers was unscheduled and intermittent. According to UNHCR, authorities allowed access but only by request. Local rights groups faced continued resistance from the government when trying to interview detainees at Qanater men's and women's prisons outside Cairo, which housed the majority of detained refugees and asylum seekers. Authorities generally granted UNHCR access to asylum seekers at all prison and detention facilities, and UNHCR officials visited 102 detained foreign prisoners to determine their status as of September. Authorities generally released migrants upon confirming they were registered with UNHCR as well. Authorities detained migrants, many of whom were Ethiopian, Eritrean, Sudanese, and Somali (and may have had a basis for asylum claims) and frequently did not grant them the same quick release. Detained migrants—as unregistered asylum seekers—did not have access to UNHCR. Authorities often held them in police stations until UNHCR or other aid agencies assisted them, although sometimes authorities sent them to regular prisons alongside convicted criminals.

The government has never recognized UNHCR's mandate to offer services to Palestinians outside of the fields of operations of the UN Relief and Works Agency, reportedly due to a belief that allowing UNHCR registration would negate Palestinian refugees' right of return. Approximately 2,900 Palestinian refugees from Syria were also present in the country, the majority reportedly in Cairo. The Palestinian Authority mission in the country provided limited assistance to this population, who were not able to access UNHCR assistance provided to Syrians due to governmental restrictions. The International Committee of the Red Cross

(ICRC) mission in Cairo provided some humanitarian assistance to Palestinian refugees from Syria.

Employment: There is no law granting or prohibiting refugees the right to work. Those seeking unauthorized employment were challenged by lack of jobs and societal discrimination, particularly against sub-Saharan Africans. Refugees who found work took low-paying jobs in the informal market, such as domestic servants, and were vulnerable to financial and sexual exploitation by employers.

Access to Basic Services: Refugees, in particular non-Arabic-speaking refugees from sub-Saharan Africa, received limited access to some services, including housing and public education. According to UNHCR, refugees can fully access public-health services. The Interior Ministry restricted some international organizations seeking to assist migrants and refugees in Sinai. UNHCR was unaware of any migrants detained in Sinai since 2016. UNHCR provided refugees with modest support for education and health care, as well as small monthly financial assistance grants for particularly vulnerable refugees. The International Organization for Migration provided additional assistance to particularly vulnerable migrants and individual asylum cases either rejected or being processed by UNHCR.

Refugee children not enrolled in public schools mainly attended refugee-run schools, private schools, or were home schooled. The law requires government hospitals to provide free emergency medical care to refugees, but many hospitals did not have adequate resources to do so. In some cases hospitals insisted that refugees provide payment in advance of receiving services or refused to provide services to refugees. In response to the influx of Syrians, the government allowed Syrian refugees and asylum seekers access to public education and health services. UNHCR estimated that 35,000 school age Syrian children (approximately 90 percent) have enrolled successfully in the public school system.

STATELESS PERSONS

Most of the 26 stateless persons known to UNHCR were Armenians displaced for more than 50 years. According to a local civil society organization, the number of stateless persons in the country was likely higher than the number recorded by UNHCR. The government and UNHCR lacked a mechanism for identifying stateless persons, including those of disputed Sudanese/South Sudanese nationality and those of disputed Ethiopian/Eritrean nationality. An unknown number of the approximately 70,000 Palestinian refugees were stateless.

Section 3.

Freedom to Participate in the Political Process

The constitution provides citizens the ability to choose their government in free and fair periodic elections held by secret ballot and based on universal and equal suffrage. Constraints on freedom of expression, association, and assembly, however, limited citizens' ability to do so.

Elections and Political Participation

Recent Elections: The country held parliamentary elections in several rounds in 2015. Domestic and international observers concluded that authorities administered parliamentary elections professionally and in accordance with the laws. Observers expressed concern regarding restrictions on freedoms of peaceful assembly, association, and expression and their negative effect on the political climate surrounding elections.

Domestic and international observers concluded authorities administered the 2014 presidential election professionally and in line with the law, but they expressed serious concerns regarding constraints on the freedoms of expression and association and limits on freedom of the press leading to the election, which “prevented free political participation and severely compromised the broader electoral environment.”

Political Parties and Political Participation: The constitution grants citizens the ability to form, register, and operate political parties. The law requires new parties to have a minimum of 5,000 members from each of at least 10 governorates. The constitution also states, “No political activity may be practiced and no political parties may be formed on the basis of religion or discrimination based on gender, origin, or sectarian basis or geographic location. No activity that is hostile to democratic principles, secretive, or of military or quasi-military nature may be practiced. Political parties may not be dissolved except by virtue of a court judgment.”

The Freedom and Justice Party, the political wing of the MB, remained banned. Authorities did not ban other Islamist parties, including the Strong Egypt Party and the Building and Development Party, although those parties boycotted the 2015 parliamentary elections, citing a “negative political environment.” The Islamist al-Noor Party participated, winning 11 seats.

Press reported a wave of arrests of members of smaller political parties, including the Bread and Freedom Party and the Dostour Party in April and May. Authorities detained more than 40 individuals. This included former presidential candidate and human rights lawyer Khaled Ali, who authorities arrested and charged with public indecency after a photograph showed him making a provocative hand gesture in public. In September a court sentenced Ali to three months in prison. On November 6, Ali announced he would run in the 2018 presidential election if he is

not barred as a result of his conviction. The next hearing for his appeal is January 3. Human rights organizations claimed the charges against Ali were politically motivated.

In December Anwar al-Sadat, the head of the opposition Reform and Development Party, claimed the security services had repeatedly prevented hotels in Cairo from renting him space to hold a press conference for his party. Sadat claimed that two public campaigns supporting President Abdel Fattah al-Sisi for a second term have been able to hold press conferences, with the support of government agencies.

Participation of Women and Minorities: No laws limit participation of women, members of minorities, or both in the political process, and they did participate. Social and cultural barriers, however, limited women's political participation and leadership in most political parties and some government institutions. Voters elected a record number of 75 women, 36 Christians, and nine persons with disabilities to parliament during the 2015 elections, a substantial increase compared with the 2012 parliament. The House of Representatives law outlines the criteria for the electoral lists, which provides that the House of Representatives must include at least 56 women, 24 Christians, and nine persons with disabilities. In 2015 the president appointed 28 additional members of parliament, including 14 women and two Christians. The House of Representatives law grants the president the authority to appoint House of Representatives members, not to surpass 5 percent of the total number of elected members. If the president opts to use this authority, one-half of his appointments must be women, according to the law. Parliament included 89 women and 38 Christians.

Three women led four cabinet ministries; not all cabinet members hold portfolios. No members of religious minorities were among the appointed governors of the 27 governorates. In February the president appointed Nadia Abdou governor of

Behaira, making her the country's first female governor. No women were on the Supreme Constitutional Court. Legal experts stated there were approximately 66 female judges serving in family, criminal, economic, appeals, and misdemeanor courts; that total was less than 1 percent of judges. Several senior judges were Christian.

Section 4.

Corruption and Lack of Transparency in Government

The law provides criminal penalties for corruption by officials, but the government did not consistently implement the law effectively, and officials sometimes engaged in corrupt practices with impunity.

Corruption: The Central Agency for Auditing and Accounting was the government's anticorruption body and submitted reports to the president and prime minister that were not available to the public. The auditing and accounting agency stationed monitors at state-owned companies to report corrupt practices. The Administrative Control Authority, another state institution with technical, financial, and administrative independence, had jurisdiction over state administrative bodies, state-owned enterprises, public associations and institutions, private companies undertaking public work, and organizations to which the state contributes in any form.

On August 27, authorities arrested Alexandria's deputy governor Soad el Kholy on charges including bribery, misuse of public funds, and profiteering. On November 29, the prosecutor general referred the case to criminal court.

On August 22, the Cairo Criminal Court acquitted businessman Hussein Salem on charges of money laundering. On May 18, the court acquitted him in the retrial of a case involving exporting gas to Israel. The acquittals were part of a reconciliation agreement reached in March 2016 with Salem. Salem had lived in Spain since 2011, following conviction in absentia of corruption related to the sale of natural gas and electricity and separate sentences of 15 years' and 10 years' imprisonment. According to Salem's lawyer's comments to media, the agreement included the transfer of 78 percent of the assets held by Salem, his children, and his grandchildren to the government. According to press reports, Salem had transferred EGP 4.28 billion (\$242.7 million) by the end of 2016. In July, Salem returned to the country.

On September 13, the Cairo Criminal Court convicted Gamal al-Labban, purchasing manager for the State Council of receiving bribes worth an estimated EGP 150 million (\$8.48 million). Al-Labban was arrested in December 2016. The court acquitted three defendants who reported incidents of bribery, thus exempting them from punishment according to the penal code. Another subject of the investigation, former State Council secretary general Wael Shalaby was arrested on January 1. On January 2, Shalaby was subsequently found dead in his cell on January 2 reportedly from suicide.

Financial Disclosure: There are no financial disclosure laws for public officials. A 2013 conflict-of-interest law forbids government officials from maintaining any pecuniary interest in matters over which they exercise authority.

Section 5.

Governmental Attitude Regarding International and Nongovernmental Investigation of Alleged Violations of Human Rights

The government continued to exhibit an uncooperative and suspicious approach to international and local human rights organizations. Government officials publicly asserted they shared the civil society organizations' goals, but they rarely cooperated with or responded to the organizations' inquiries. Domestic civil society organizations criticized the government's consultations with civil society as insufficient. Provisions in the new NGO law and penal code for penalties of up to life imprisonment for requesting or accepting foreign funding to undermine state security continued to have a chilling effect on NGO operations (see section 2.b.).

Extended delays in gaining government approvals and an unclear legal environment continued to limit the ability of domestic and international NGOs to operate. State-owned and independent media frequently depicted NGOs, particularly international NGOs and domestic NGOs that received funding from international sources, as undertaking subversive activities. Some NGOs reported receiving visits or calls to staff, both at work and at home, from security service officers and tax officials monitoring their activities, as well as societal harassment.

Human rights defenders and political activists were also subject to governmental and societal harassment and intimidation, including through travel bans (see section 2.d.). Print and television media published articles that included the names, photographs, business addresses, and alleged meetings held by activists, including meetings held with foreign diplomatic representatives.

Well established, independent domestic human rights NGOs struggled to operate amid increasing pressure from security forces throughout the country. Widespread online censorship (see section 2.a.) diminished internet activists' and bloggers' role in publicizing information concerning human rights abuses. Authorities sometimes allowed civil society organizations not registered as NGOs to operate, but such organizations often reported harassment, along with threats of government interference, investigation, asset freezes, or closure.

The government reopened investigations into the receipt of foreign funding by several human rights organizations (see section 1.b.).

Major international human rights organizations, such as HRW and AI, did not have offices in the country after closing them in 2014 due to "concerns about the deteriorating security and political environment in the country."

The United Nations or Other International Bodies: The government did not respond to the visit requests from 10 UN special rapporteurs charged with investigation or monitoring of alleged human rights abuses. The oldest pending request was from the special rapporteur on torture in 1996. The most recent pending request was from the special rapporteur on the promotion and protection of human rights while countering terrorism as issued during the year. The government had agreed to but not yet scheduled dates for the visits of three special rapporteurs, including those responsible for violence against women; promotion of truth, justice, reparation, and provision for their nonrecurrence; and foreign debt. Authorities did not allow the ICRC access to prisoners and detainees. The Interior Ministry provided some international organizations informal access to some detention centers where authorities detained asylum seekers, refugees, and migrants to provide humanitarian assistance (see section 2.d.).

Government Human Rights Bodies: The NCHR monitored government abuses of human rights and submitted citizen complaints to the government. A number of well-known human rights activists served on the organization's board, although some observers alleged the board's effectiveness was sometimes limited because it lacked sufficient resources and the government rarely acted on its findings. The council at times challenged and criticized government policies and practices, calling for steps to improve its human rights record. For example, the NCHR called for improved prison conditions and for repeal of the protest law.

Section 6.

Discrimination, Societal Abuses, and Trafficking in Persons

Women

Rape and Domestic Violence: The law prohibits rape, prescribing criminal penalties of 15 to 25 years' imprisonment, or life imprisonment for cases of rape involving armed abduction. Spousal rape is not illegal. The government did not effectively enforce the law. Civil society organizations reported police pressure not to pursue charges.

Domestic violence was a significant problem. The law does not prohibit domestic violence or spousal abuse, but authorities may apply provisions relating to assault with accompanying penalties. The law requires that an assault victim produce multiple eyewitnesses, a difficult condition for domestic abuse victims. Police often treated domestic violence as a social rather than criminal matter.

The Ministry of Social Solidarity supported eight women's shelters. The Interior Ministry includes a unit responsible for combating sexual and gender-based violence. The NCW, a quasi-governmental body, was responsible for coordinating

government and civil society efforts to empower women. In 2015 the NCW launched a five-year *National Strategy to Combat Violence Against Women* with four strategic objectives: prevention, protection, intervention, and prosecution.

Female Genital Mutilation/Cutting (FGM/C): FGM/C is illegal, but it remained a serious problem. According to the *2015 Egypt Health Issues Survey*, published during 2016 by the Ministry of Health and Population, 70 percent of girls between ages 15 and 19 had undergone FGM/C, a decrease from 81 percent in 2008.

A 2016 amendment to the law designates FGM/C a felony, as opposed to a misdemeanor as it was previously, and assigns penalties for conviction of five to seven years' imprisonment for practitioners who perform the procedure, or 15 years if the practice led to death or "permanent deformity." The law granted exceptions in cases of "medical necessity," which rights groups identified as a problematic loophole that allowed the practice to continue. According to international and local observers, the government did not effectively enforce the FGM/C law.

Other Harmful Traditional Practices: The law does not specifically address "honor" crimes, which authorities treated as any other crime. There were no reliable statistics regarding the incidence of killings and assaults motivated by "honor," but local observers stated such killings occurred, particularly in rural areas.

Sexual Harassment: Sexual harassment remained a serious problem.

The government prioritized efforts to address sexual harassment. The penal code defines sexual harassment as a crime, with penalties including fines and sentences of six months to five years' imprisonment if convicted. Media and NGOs reported that sexual harassment by police was also a problem, and the potential for further harassment further discouraged women from filing complaints.

In April as part of a focus on sexual harassment during the holiday of Sham el-Nessim, police reportedly detained dozens of men in connection with accusations of sexual harassment. Police forces, including female officers, were deployed in public gardens, parks, and streets, and government hotlines were available for reporting incidents.

On July 30, a Cairo court convicted a male tuk-tuk (covered moped taxi) driver of “harassment” after he sexually assaulted a woman in September 2016 while she was walking in a street and sentenced him to five years’ imprisonment. According to the NCW, the ruling was the first conviction under the sexual harassment law.

Coercion in Population Control: There were no reports of coerced abortion, involuntary sterilization, or other coercive population control methods. Estimates on maternal mortality and contraceptive prevalence are available at:

www.who.int/reproductivehealth/publications/monitoring/maternal-mortality-2015/en/.

Discrimination: The constitution provides for equal rights for male and female citizens. Women did not enjoy the same legal rights and opportunities as men, and discrimination was widespread. Aspects of the law and traditional societal practices disadvantaged women in family, social, and economic life.

Women faced widespread societal discrimination, threats to their physical security, and workplace bias in favor of men that hindered their social and economic advancement.

Laws affecting marriage and personal status generally corresponded to an individual’s religious group. A female Muslim citizen cannot legally marry a non-Muslim man. If she were to do so, authorities could charge her with adultery and consider her children illegitimate. Under the government’s interpretation of Islamic law, any children from such a marriage could be placed in the custody of a male

Muslim guardian. “Khula” divorce allows a Muslim woman to obtain a divorce without her husband’s consent, provided she forgoes all her financial rights, including alimony, dowry, and other benefits. The Coptic Orthodox Church permits divorce only in rare circumstances, such as adultery or conversion of one spouse to another religion. Other Christian churches sometimes permitted divorce on a case-by-case basis.

The law follows Islamic sharia in matters of inheritance; therefore, a Muslim female heir generally receives one-half the amount of a male heir’s inheritance, and Christian widows of Muslims have no inheritance rights. A sole Muslim female heir receives one-half her parents’ estate, and the balance goes to the siblings of the parents or the children of the siblings if the siblings are deceased. A sole male heir inherits his parents’ entire estate. A court case suing for the right of a Christian family to divide property equally among sons and daughters was pending appeal.

In marriage and divorce cases, a woman’s testimony must be judged credible to be admissible. Usually the woman accomplishes credibility by conveying her testimony through an adult male relative or representative. The law assumes a man’s testimony is credible unless proven otherwise.

The law makes it difficult for women to access formal credit. While the law allows women to own property, social and religious barriers strongly discouraged women’s ownership of land, a primary source of collateral in the banking system.

Labor laws provide for equal rates of pay for equal work for men and women in the public but not the private sector. Educated women had employment opportunities, but social pressure against women pursuing a career was strong. Large sectors of the economy controlled by the military excluded women from high-level positions.

Children

Birth Registration: Children derive citizenship through the citizenship of their parents. The mother or the father transmits citizenship and nationality. The government attempted to register all births soon after birth, but some citizens in remote and tribal areas, such as the Sinai Peninsula, resisted registration or could not document their citizenship. In some cases failure to register resulted in denial of public services, particularly in urban areas where most services required presentation of a national identification card.

Education: Education is compulsory, free, and universal until the ninth grade. The law provides this benefit to stateless persons and refugees. Public schools enrolled Syrian refugees, but they largely excluded refugees of other nationalities.

Child Abuse: The constitution stipulates the government shall protect children from all forms of violence, abuse, mistreatment, and commercial and sexual exploitation. According to a local rights group, authorities recorded hundreds of cases of alleged child abuse each month. No dedicated government institution addressed child abuse, although several civil society organizations assisted runaway and abandoned children.

In March the Department of Family and Children at the Ministry of Social Solidarity investigated complaints of child abuse in the Ishraqa orphanage in Six October City. According to a ministry official, orphanage employees beat and sexually assaulted the children; moreover, they did not receive adequate food or supervision. One orphanage employee told the press the abuse had continued for years. Police arrested the former orphanage supervisor as part of a continuing investigation.

Rights organizations reported children faced mistreatment in detention, including torture, sharing cells with adults, denial of their right to counsel, and authorities' failure to notify their families. According to a local rights group, police sometimes charged street children with unsolved crimes to increase perceived police effectiveness. On January 31, authorities released Mazen Mohamed Abdallah pending investigation of charges of belonging to a banned group, protesting without authorization, and printing flyers inciting protests. Security forces detained then 14-year-old Abdallah in 2015. AI reported authorities held him for seven days without contacting his family and that authorities tortured Abdallah, including by raping him with a wooden stick and subjecting him to electric shocks. The Interior Ministry denied these claims. No further information was available on the case as of year's end.

Early and Forced Marriage: The legal age of marriage is 18. According to UNICEF 17 percent of girls married before age 18, and 2 percent of girls were married by age 15. According to NCW statistics, nearly 36 percent of marriages in rural areas in the southern part of the country included a partner who was not yet age 18. Families reportedly sometimes forced adolescent girls to marry wealthy foreign men in what were known locally as "tourism" or "summer" marriages for the purpose of sexual exploitation, prostitution, or forced labor. According to the law, a foreign man who wants to marry an Egyptian woman more than 25 years younger than he is must pay a fine of EGP 50,000 (\$2,830). Women's rights organizations argued that allowing foreign men to pay a fine to marry much younger women represented a form of trafficking and encouraged child marriage. They called on the government to eliminate the system altogether. The Antitrafficking Unit at the National Council for Childhood and Motherhood (NCCM), a governmental body, is responsible for raising awareness of the problem.

Sexual Exploitation of Children: The law provides for sentences of not less than five years' imprisonment and fines of up to EGP 200,000 (\$11,315) for conviction of commercial sexual exploitation of children and child pornography. The government did not adequately enforce the law. The minimum age for consensual sex is age 18.

Displaced Children: The CAPMAS and the National Council for Motherhood estimated the number of street children to be 16,000, while civil society organizations estimated the number to be in the millions. The ministry offered shelters to street children, but many chose not to use them because staff treated the children as if they were criminals, according to local rights groups. According to rights groups, the incidence of violence, prostitution, and drug dealing in these shelters was high. Religious institutions and NGOs provided services for street children, including meals, clothing, and literacy classes. The Ministry of Health and Population offered mobile health clinics staffed by nurses and social workers. In July the Ministry of Social Solidarity launched an initiative in which 17 mobile units in 10 governorates provided emergency services, including food and health care, to street children.

International Child Abductions: The country is not a party to the 1980 Hague Convention on the Civil Aspects of International Child Abduction. See the Department of State's *Annual Report on International Parental Child Abduction* at travel.state.gov/content/childabduction/en/legal/compliance.html.

Anti-Semitism

The country's Jewish community reportedly numbered less than 20 individuals. Criticism of Israel rarely reached the level of anti-Semitism in public discourse. State-owned and private media greatly reduced the use of anti-Semitic rhetoric,

including by academics, cultural figures, and clerics, with cartoons demonizing Jews. There were a few reports of imams using anti-Semitic rhetoric in their sermons. Societal anti-Semitism remained widespread.

In praise of a UNESCO resolution on Jerusalem, Grand Mufti of Dar al-Ifta Shawky Allam called al-Aqsa Mosque “a holy site dedicated only for Muslims without any right for Jews,” according to press reports.

The chairman of parliament’s Human Rights Committee, Alaa Abed, said the “Zionist Lobby” funded an HRW report on torture in Egyptian jails.

For the seventh consecutive year, authorities cancelled the Abu Hassira celebrations scheduled for January, preventing an annual Jewish pilgrimage, which in previous years had included many Israelis, to the shrine of 19th-century scholar Rabbi Yaakov Abu Hassira. The cancellation followed a 2014 administrative court decision to ban the festival permanently, stating the festival was a “violation of public order and morals” and “incompatible with the solemnity and purity of religious sites.”

Trafficking in Persons

See the Department of State’s *Trafficking in Persons Report* at www.state.gov/j/tip/rls/tiprpt/.

Persons with Disabilities

The constitution states persons with disabilities are equal without discrimination before the law, but no laws explicitly prohibited discrimination, nor mandate access to buildings, information, communication, or transportation.

The law provides for persons with disabilities to gain access to vocational training and employment. Government policy sets a quota for employing persons with disabilities of 5 percent of workers with disabilities for companies with more than 50 employees. Authorities did not enforce the quota requirement, and companies often had persons with disabilities on their payroll to meet the quota without actually employing them. Government-operated treatment centers for persons with disabilities, especially children, were of poor quality.

The Ministries of Education and Social Solidarity share responsibility for protecting the rights of persons with disabilities. Persons with disabilities rode government-owned mass transit buses without charge, but the buses were not wheelchair accessible. Persons with disabilities received subsidies to purchase household products, wheelchairs, and prosthetic devices.

National/Racial/Ethnic Minorities

The law prohibits discrimination on any grounds. Nevertheless, dark-skinned Egyptians and sub-Saharan Africans faced discrimination and harassment, as did Nubians from Upper Egypt.

According to the constitution, the state should make efforts to return Nubians to their original territories and develop such territories within 10 years of the constitution's 2014 ratification.

On September 3, security forces in Aswan arrested 25 Nubians who were participating in a protest to commemorate the 2011 detention of Nubians during a sit-in. The charges against them included protesting illegally and receiving funds from foreign sources. Several of the original detainees undertook hunger strikes in protest of their continued detention, including activist Gamal Sorour, who died on

November 6 after falling into a diabetic coma. The death of Sorour triggered another protest on November 9 by members of the Nubian community outside the detention facility where Sorour had been held. Authorities reportedly arrested as many as 13 protesters at the event. On November 12, a court ordered the original 24 detainees released, pending their next hearing in 2018.

Acts of Violence, Discrimination, and Other Abuses Based on Sexual Orientation and Gender Identity

While the law does not explicitly criminalize consensual same-sex sexual activity, it allows police to arrest LGBTI persons on charges such as “debauchery,” “prostitution,” and “violating the teachings of religion” and provides for prison sentences if convicted of up to 10 years. According to a local rights group, there were more than 250 reports of such arrests since 2013. Authorities did not use antidiscrimination laws to protect LGBTI individuals. Legal discrimination and social stigma impeded LGBTI persons from organizing or advocating publicly in defense of their rights. Information was not available on official or private discrimination in employment, occupation, housing, statelessness, or access to education or health care based on sexual orientation and gender identity. There were no government efforts to address potential discrimination.

There was an increase in reports of arrests and harassment of LGBTI individuals, particularly after a rainbow flag was raised on September 22, at a concert by the rock band “Mashrou Leila.” Intimidation and the risk of arrest greatly restricted open reporting and contributed to self-censorship. Rights groups and activists reported harassment by police, including physical assault and forced payment of bribes to provide information concerning other LGBTI individuals or to avoid arrest. The government has the authority to deport or bar entry to the country of LGBTI foreigners.

There were credible reports that authorities used social media, dating websites, and cell phone apps to entrap persons they suspected of being gay or transgender, a method that LGBTI advocates described as especially effective as LGBTI-friendly public spaces had largely closed during the past two years.

On September 25, police arrested seven persons for raising the rainbow flag at the “Mashrou Leila” concert. According to news reports, police also arrested a person for filming and promoting the concert on his Facebook page. By December 4, the number of arrests had risen to more than 70, including one minor. Of those arrested and convicted, 49 received sentences ranging from three months’ to six years’ imprisonment. Two detainees were released on probation and three acquitted. According to media reports, charges included “promoting sexual deviancy” and “habitual debauchery.”

On September 26, the Dokki court convicted and sentenced one man to six years’ imprisonment for practicing debauchery and being openly gay on social media. Press reports indicated the charges stemmed from police searches of LGBTI social media pages and linked the conviction to the rainbow flag incident.

Rights groups alleged that authorities, including the Forensic Medical Authority, subjected individuals detained on suspicion of debauchery to forced anal examinations.

On October 1, the Supreme Council for Media Regulation issued an order to ban all forms of promotion or sympathy toward LGBTI individuals on media outlets in addition to banning their appearance on media outlets.

HIV and AIDS Social Stigma

HIV-positive individuals faced significant social stigma and discrimination in society and the workplace. The health-care system provided anonymous counseling and testing for HIV, free adult and pediatric antiretroviral therapy, and support groups.

Other Societal Violence or Discrimination

There were incidents of mob violence and vigilantism, particularly sectarian violence against Coptic Christian Egyptians. On September 14, a mob of Muslim residents of Minya's Ezbat el-Sheikh Nageim village attacked Coptic Christians, injuring three persons and destroying several shops and vehicles. The mob also pelted a church with stones, according to press reports. Police detained 19 persons in connection with the violence. Police also charged two Coptic Christian men with inciting sectarian strife and insulting Islamic leaders

Section 7.

Worker Rights

A. FREEDOM OF ASSOCIATION AND THE RIGHT TO COLLECTIVE BARGAINING

The law provides for the rights of workers to form and join independent unions, bargain collectively, and strike, with significant restrictions. The constitution provides for freedom of association. In December authorities passed a law regulating labor unions. The law does not recognize independent trade unions and proscribes a strict hierarchy for union formation consisting of a company-level trade union committee, a profession- or industry-level general union, and a national-level federation. It also stipulates a minimum of 20,000 members are

needed to form a general trade union and 200,000 are needed to form a national-level trade federation. In March 2016 the Interior Ministry issued a directive instructing government offices not to accept documents stamped by independent trade unions as legal documents, calling such unions “illegitimate entities.”

The law provides for collective bargaining but imposes significant restrictions. For example, the government sets wages and benefits for all public-sector employees. The law does not provide for enterprise-level collective bargaining in the private sector but requires centralized tripartite negotiations with workers represented by a union affiliated with the Egyptian Trade Union Federation (ETUF) and the Ministry of Manpower overseeing and monitoring collective negotiations and agreements.

The constitution provides for the right to “peaceful” strikes. The Unified Labor Law permits peaceful strikes but imposes significant restrictions for strikes to be considered legal, including prior approval by a general trade union affiliated with the ETUF.

The law prohibits antiunion discrimination and provides for the reinstatement of workers fired for union activity. Labor laws do not cover several categories of workers, including agricultural and domestic workers, among other sectors of the informal economy.

Government enforcement of applicable laws was inconsistent. HRW reported that no unions had been able to register since 2015. The government also occasionally used its powers to arrest striking workers and rarely reversed arbitrary dismissals. The government seldom followed the requirement for tripartite negotiations in collective disputes, and workers negotiated directly with employers, usually after resorting to a strike. When the government became involved, it most often was for dispute resolution rather than for genuine collective bargaining.

In June the Supreme Administrative Court ruled that peaceful strikes concerning work complaints are not punishable offenses, even in the absence of a legislative law regulating the action(s), as long as the demands of the strike are legitimate and represent the rights of workers. The ruling stipulated, “the right to strike for public sector workers is enshrined within the Constitution.”

The court further suggested five principles to regulate rulings on the right to strike for public-sector employees in the absence of an official legislation. First, the demands must be considered legitimate and relevant to the job performed by the employees, yet nonpolitical. Second, employees can only strike after exhausting all other formal communication channels, such as submitting complaints and discussing them. Third, the relevant administration should be notified of the strike’s intention in advance. Fourth, administration should be given enough time to respond to the demands, and, finally, other options should be provided for urgent matters relating to their work, so citizens’ interests are not hindered.

Unions, which proliferated in recent years, faced pressure to dissolve. In June 2016 an administrative court referred a lawsuit calling for the dissolution of independent trade unions to the Supreme Constitutional Court. ETUF affiliates filed the lawsuit. The court had not taken up the lawsuit as of December.

Two main independent trade union federations, the Egyptian Federation of Independent Trade Unions and the Egyptian Democratic Labor Congress, continued to operate. The National Federation of Egyptian Trade Unions, a coalition of 140 independent trade unions from the public and private sector whose leadership stated it focused on negotiations with the government rather than strikes or protests, had not been reported to have engaged in any activities since its founding in 2015.

While it was no longer directly controlled by the state, observers still saw the ETUF as subordinate to the state, and authorities repeatedly postponed elections for new leadership. Government-appointed ETUF board members remained in place, despite the expiration of former prime minister Mehlab's 2014 decree to extend the government-appointed board. The ETUF received some advantages from the state.

Authorities arrested or subjected to other legal sanctions several labor organizers, often following the dispersal or end of a labor strike. In September authorities arrested workers of the state-owned Misr Spinning and Weaving company in Mahala, following an August strike action organized to protest delayed bonuses and demand an increase in the meals allowance, among other work-related grievances. The strike lasted for 14 days in August. Authorities charged the workers with instigating unlawful strikes and obstructing company operation. On September 9, company officials banned six workers from company premises, reportedly for organizing the strike. The company also reduced workers' August salaries by 20 percent and delayed payment of September salaries. As of December the case was pending investigation before the prosecutor general.

In September authorities arrested eight members of Egyptian independent trade unions following union training events and attempts to organize protest actions. According to a Center of Trade Unions and Workers Services statement, authorities arrested two of the members after they filed for permits to hold a protest demanding pay raises. Authorities arrested Tarek Mostafa Koaib, head of the Real Estate Workers Syndicate, in front of a hospital where he had been referred for admission to intensive care (see section 1.c.). The detainees faced charges including inciting strikes and demonstrations, misuse of social media, and affiliation with a banned group. On October 16, they were released on bail; at year's end no information was available on the date of the next hearing.

Workers sometimes staged sit-ins on government and private property, often without obtaining the necessary permits. Rights groups claimed that authorities sometimes arrested those seeking to obtain protest permits. In August a South Sinai court convicted 50 police officers and sentenced them to three years' imprisonment for organizing a strike in January to improve their working conditions. Authorities charged police officers with illegal assembly, sabotage of state assets, and endangering citizens after the officers held a two-day strike in January at the South Sinai security directorate.

Police, and the military to a lesser extent, engaged in the forceful dispersal of labor actions in isolated cases.

B. PROHIBITION OF FORCED OR COMPULSORY LABOR

The constitution states no work may be compulsory except by virtue of a law. Government did not effectively enforce the prohibition. Employers subjected male and female persons (including citizens) from South Asia, Southeast Asia, and Africa to forced labor in domestic service, construction, cleaning, begging, and other sectors. The government worked with NGOs to provide some assistance to victims of human trafficking, including forced labor.

Also see the Department of State's *Trafficking in Persons Report* at www.state.gov/j/tip/rls/tiprpt/.

C. PROHIBITION OF CHILD LABOR AND MINIMUM AGE FOR EMPLOYMENT

The Child Law sets the minimum age for regular employment at 15 and at 13 for seasonal employment. The constitution defines a child as anyone under age 18. A Ministry of Manpower decree bars children under age 18 from 44 specific hazardous occupations, while the Child Law prohibits employment of children

under 18 from work that “puts the health, safety, or morals of the child into danger.” Provincial governors, with the approval of the minister of education, may authorize seasonal work (often agricultural) for children ages 13 years and older, provided duties are not hazardous and do not interfere with schooling. The labor code and Child Law limit children’s work hours and mandate breaks.

Overall, authorities did not enforce child labor laws effectively. The Ministry of Manpower, in coordination with the National Council for Childhood and Motherhood and the Interior Ministry, enforced child labor laws in state owned enterprises and private sector establishments through inspections and supervision of factory management. Labor inspectors generally operated without adequate training on child labor issues, although the Ministry of Manpower offered some child-labor-specific training. The government did not inspect noncommercial farms for child labor, and there were very limited monitoring and enforcement mechanisms for children in domestic service. When authorities prosecuted offenders, the fines imposed were often as low as EGP 500 (\$28), insufficient to deter violations. The government did not enforce child labor laws in the informal sector.

The Ministry of Manpower inspected 25,735 facilities, issued 6,414 formal warnings, and initiated legal actions against 352 facilities between January 2016 and August.

Although the government often did not effectively enforce relevant laws, authorities implemented a number of social, educational, and poverty reduction programs to reduce children’s vulnerability to exploitive labor. The NCCM, working with the Ministries of Education and Social Solidarity, sought to provide working children with social security safeguards and to reduce school dropout rates by providing families with alternative sources of income.

Child labor occurred, although estimates on the number of child laborers varied. According to the EDHS, 1.6 million children worked, primarily in the agricultural

sector in rural areas but also in domestic work and factories in urban areas, often under hazardous conditions. Children also worked in light industry, the aluminum industry, construction sites, and service businesses such as auto repair. According to government, NGO, and media reports, the number of street children in Cairo continued to increase in the face of deteriorating economic conditions. Such children were at greater risk of sexual exploitation or forced begging. In some cases employers abused or overworked children.

Also see the Department of Labor's *Findings on the Worst Forms of Child Labor* at www.dol.gov/ilab/reports/child-labor/findings/.

D. DISCRIMINATION WITH RESPECT TO EMPLOYMENT AND OCCUPATION

The constitution states all citizens “are equal in rights, freedoms, and general duties without discrimination based on religion, belief, gender, origin, race, color, language, disability, social class, political or geographic affiliation, or any other reason.” It does not specify age, citizenship, sexual orientation or gender identity, or HIV-positive status or other communicable diseases. The law provides for persons with disabilities to gain access to vocational training and employment but does not completely outlaw discrimination. The government did not effectively enforce prohibitions against such discrimination. Discrimination in employment and occupation occurred with respect to women and persons with disabilities (see section 6). Discrimination against migrant workers occurred (see section 2.d.).

An employee facing discrimination can file a report with the local government labor office. If the employee and the employer are unable to reach an amicable settlement, they take the claim to administrative court, which may order the employer to redress the complaint or to pay damages or legal fees. According to

local rights groups, implementation of the law was inadequate. Additionally, the lengthy and expensive litigation process could deter employees from filing claims.

E. ACCEPTABLE CONDITIONS OF WORK

There is no national minimum wage. The government sets a monthly minimum wage of EGP 1,200 (\$68) for government employees and public-sector workers. According to labor rights organizations, the government implemented the minimum wage for public-sector workers but applied it only to direct government employees and included benefits and bonuses in calculating total salaries. Most government workers already earned income equal to or more than the announced minimum wage. For government employees and public business-sector workers, the government also set a maximum wage limit at 35 times the minimum wage of EGP 42,000 (\$2,380) per month. There was no private-sector minimum wage. In 2015 CAPMAS estimated the poverty rate in the country to be 27.8 percent, an increase from its 2013 estimate of 26 percent. The law does not require equal pay for equal work.

The law stipulates a maximum 48-hour workweek for the public and private sectors and provides for premium pay for overtime and work on rest days and national holidays. The labor law prohibits excessive compulsory overtime. The government sets worker health and safety standards, for example, prohibiting employers from maintaining hazardous working conditions. The law excludes agricultural, fisheries, and domestic workers from regulations concerning wages, hours, and working conditions.

The Ministry of Manpower is responsible for enforcement of labor laws and standards for working conditions. Due in part to insufficient resources, labor law enforcement and inspections were inadequate. The ministry did not attempt to apply labor standards to the informal sector. Penalties, especially as they were

often unenforced, did not appear sufficient to deter violations. By law workers are allowed to remove themselves from situations that endanger health or safety without jeopardy to employment, although authorities did not reliably enforce this right. In July unidentified industrial material heated to a temperature of 1,200 degrees Celsius (2,200 degrees Fahrenheit) spilled into a worker area, killing three workers in the Aswan Cement Plant. Workers went on strike after the accident to demand better safety measures. Authorities arrested eight workers and charged them with obstructing means of production, inciting a strike, using violence, and threatening public employees.

The government provided services, such as free health care, to all citizens, but the quality of services was often poor. Other benefits, such as social insurance, were available only to employees in the formal sector.

Many persons throughout the country faced poor working conditions, especially in the informal economy, which employed up to 40 percent of workers, according to some estimates. Domestic workers, agricultural workers, workers in rock quarries, and other parts of the informal sector were most likely to be subjected to hazardous or exploitive conditions. There were reports of employer abuse of citizen and undocumented foreign workers, especially domestic workers. Little information was available on workplace fatalities and accidents.